

1 **SENATE FLOOR VERSION**

2 April 7, 2025

3 ENGROSSED HOUSE
4 BILL NO. 2361

By: Hill, Gise, Pae, and Munson
of the House

5 and

6 Daniels of the Senate

7
8
9 An Act relating to children; amending 10A O.S. 2021,
10 Section 1-9-107, which relates to the Successful
11 Adulthood Act; providing documents certain children
12 leaving foster care shall be provided; providing that
13 certain documents be given to individuals being
14 released from the custody of the Office of Juvenile
15 Affairs; providing for codification; and providing an
16 effective date.

17 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

18 SECTION 1. AMENDATORY 10A O.S. 2021, Section 1-9-107, is
19 amended to read as follows:

20 Section 1-9-107. A. This section shall be known and may be
21 cited as the "Successful Adulthood Act".

22 B. The purpose of the Successful Adulthood Act shall be:

23 1. To ensure that eligible individuals, who have been or are in
24 the foster care program of the Department of Human Services or a
federally recognized Indian tribe with whom the Department has a
contract, due to abuse or neglect, receive the protection and

1 support necessary to allow those individuals to become self-reliant
2 and productive citizens through the provision of requisite services
3 that include, but are not limited to, transitional planning,
4 housing, medical coverage, and education; provided, that eligibility
5 for tuition waivers shall be as set forth in Section 3230 of Title
6 70 of the Oklahoma Statutes;

7 2. To break the cycle of abuse and neglect that obligates the
8 state to assume custody of children; and

9 3. To help children who have experienced foster care at age
10 fourteen (14) or older achieve meaningful permanent connections with
11 a caring adult.

12 C. An individual is eligible to receive services for the
13 transition of the child to a successful adulthood from the age of
14 fourteen (14) until the age of eighteen (18), during the time the
15 individual is in the custody of the Department or a federally
16 recognized Indian tribe and in an out-of-home placement.

17 D. The permanency plan for the child in transition to a
18 successful adulthood shall be developed in consultation with the
19 child and, at the option of the child, with up to two members of the
20 permanency planning team to be chosen by the child, excluding the
21 foster parent and caseworker for the child, subject to the following
22 provisions:

23 1. One individual selected by the child may be designated to be
24 the advisor and, as necessary, advocate of the child, with respect

1 to the application of the reasonable and prudent parent standard to
2 the child; and

3 2. The Department may reject an individual selected by the
4 child to be a member of the permanency planning team at any time if
5 the Department has good cause to believe that the selected
6 individual would not act in the best interests of the child.

7 E. 1. Each child in foster care under the responsibility of
8 the Department or a federally recognized Indian tribe and in an out-
9 of-home placement, who has attained fourteen (14) years of age shall
10 be given a written Notice of Rights that describes the following
11 specific rights of the child:

12 a. the rights of the child with respect to education,
13 health, visitation, and court participation,

14 b. the right to be provided with the documents specified
15 in subsection F of this section, and

16 c. the right to stay safe and avoid exploitation.

17 2. The child shall sign an acknowledgment stating that the
18 child has been provided with a copy of the Notice of Rights and that
19 the rights described in the notice have been explained to the child
20 in an age-appropriate way.

21 F. A child about to leave foster care by reason of having
22 attained eighteen (18) years of age and who has been in foster care
23 for at least six (6) months shall be given the following documents
24 pertaining to the child:

1 1. An official or certified copy of the United States birth
2 certificate;

3 2. A Social Security card issued by the Commissioner of Social
4 Security;

5 3. ~~Health insurance information~~ Information about how to obtain
6 health insurance;

7 4. A copy of the medical records of the child;

8 5. A state-issued driver license or identification card; ~~and~~

9 6. Official documentation necessary to show that the child was
10 previously in foster care; and

11 7. Any educational transcripts, diplomas, or professional
12 certificates earned while in the custody of the Department of Human
13 Services.

14 G. Successful adulthood services may continue to the age of
15 twenty-one (21), provided the individual is in the custody of the
16 Department or a federally recognized Indian tribe due to abuse or
17 neglect and is in an out-of-home placement at the time of the
18 individual's sixteenth birthday.

19 H. Individuals who are sixteen (16) years of age or older, who
20 have been released from the custody of the Department or federally
21 recognized Indian tribe due to the entry of an adoption decree or
22 guardianship order are eligible to receive successful adulthood
23 services until the age of twenty-one (21).
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1 I. Individuals who are eligible for services pursuant to the
2 Successful Adulthood Act and who are between eighteen (18) and
3 twenty-one (21) years of age shall be eligible for Medicaid
4 coverage, provided such individuals were also in the custody of the
5 Department or a federally recognized Indian tribe on the date they
6 reached eighteen (18) years of age and meet Medicaid financial
7 eligibility guidelines.

8 J. The Department, in conjunction with the Oklahoma State
9 Regents for Higher Education, shall provide parents and legal
10 guardians of foster youth with information on the Oklahoma Higher
11 Learning Access Program (OHLAP) including, but not limited to,
12 eligibility, application guidelines, academic requirements, and any
13 other information required by the Oklahoma Higher Learning Access
14 Act for participation in the Program.

15 SECTION 2. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 2-7-621 of Title 10A, unless
17 there is created a duplication in numbering, reads as follows:

18 A person who has been placed in the custody of the Office of
19 Juvenile Affairs, who has attained eighteen (18) years of age, and
20 who is being released from the custody of the Office of Juvenile
21 Affairs with a plan to re-enter the community as a resident of the
22 state shall be given the following documents pertaining to the
23 person upon release:
24

- 1 1. An official or certified copy of the United States birth
- 2 certificate;
- 3 2. A Social Security card issued by the Commissioner of Social
- 4 Security;
- 5 3. Information about how to obtain health insurance and
- 6 personal medical records;
- 7 4. A state-issued driver license or identification card; and
- 8 5. Any educational transcripts, diplomas, or professional
- 9 certificates earned while in the custody of the Office of Juvenile
- 10 Affairs.

11 SECTION 3. This act shall become effective November 1, 2025.

12 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
13 April 7, 2025 - DO PASS

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